

18CV05728 Mark Signa et al vs The Regents of the University of CA et al

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

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Motion: Motions for Summary Judgment

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Tentative Ruling: Mark Signa et al vs The Regents of the University of CA et al

Case Number

18CV05728

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 06/05/2026 - 10:00

Nature of Proceedings

Motions for Summary Judgment

Tentative Ruling

(1) For the reasons stated herein, the motion of defendant The Regents of the University of California for summary judgment, or in the alternative, motion for summary adjudication against plaintiff Mark Signa's complaint is denied.

(2) For the reasons stated herein, the motion of defendant The Regents of the University of California for summary judgment or, in the alternative, motion for summary adjudication against plaintiff Jonathan Lee Reyes' complaint is denied.

Background:

As a preliminary matter, the court notes that on September 17, 2021, after a hearing, the court issued an order granting a motion filed in this case (the Signa Action) on July 8, 2021, by the Regents of the University of California (the Regents). That motion sought an order transferring and consolidating with the Signa Action for pre-trial purposes only, the following cases:

Santa Barbara Superior Court case no. 19CV01431 entitled Michael Little, et al. v. The Regents of the University of California, et al. (the Little Action); Santa Barbara Superior Court case no. 19CV01625 entitled John Doe v. The Regents of the University of California Santa Barbara, et al. (the Smith Action); Santa Barbara Superior Court case no. 19CV02586 entitled Jonathan Lee Reyes v. The Regents of the University of California, et al. (the Reyes Action); Santa Barbara Superior Court case no. 19CV04418 entitled Matthew Stern v. The Regents of the University of California, et al. (the Stern Action); and Santa Barbara Superior Court case no. 21CV01256 entitled Ryan Hashimoto v. The Regents of the University of California, et al. (the Hashimoto Action).

On February 26, 2026, the court entered judgment in favor of the Regents, the University of California Santa Barbara Police Department (UCSB-PD), and the University of California Santa Barbara, as against the complaint filed by plaintiff Ryan Hashimoto in the Hashimoto Action.

On May 20, 2026, plaintiffs Mark Signa (Signa), Michael Little, Tiffany Little, Jonathan Lee Reyes (Reyes), and Matthew Stern (collectively, Plaintiffs) filed an ex parte application for an order shortening time for a hearing on a forthcoming motion by Plaintiffs to consolidate the Signa Action, the Little Action, the Reyes Action, and the Stern Action (collectively, the Actions) for all purposes including trial. On May 21, after a hearing, the court granted that application, set the hearing on that forthcoming motion for May 29, 2026, and ordered that any opposition to that motion be filed no later than May 27.

On May 21, 2026, Plaintiffs filed their motion for an order consolidating the Actions for all purposes including trial (the Motion to Consolidate).

On May 27, the Regents filed an opposition to the Motion to Consolidate.

On May 28, defendants Dustin Olson (Olson), Cathy Farley (Farley), David Millard (Millard), Robert Romero (Romero), Gregory Pierce (Pierce), and Gregory Smorodinsky (Smorodinsky) filed an opposition to the Motion to Consolidate.

On May 29, 2026, after a hearing, the court issued a minute order (the May 29 Order) pursuant to which the court, among other orders, adopted its tentative ruling granting the Motion to Consolidate of Plaintiffs.

Relevant here, the first amended complaint filed by Signa on February 4, 2019, is the operative pleading in the Signa Action. Briefly, in the Signa FAC, Signa alleges that he has been continuously employed by the UCSB-PD since 1990, has a stellar record of performance and service at UCSB-PD, and was promoted to Lieutenant on April 6, 2014. Olson is the Chief of Police. Signa was the supervisor of officer Ryan Smith (Smith).

Signa further alleges that they vocalized concerns about the impropriety or appearance of impropriety of a custom, practice, or policy through which certain UCSB-PD officers, including Smith, received favored status and were immune from any negative or critical feedback, investigations, or disciplinary action. In addition, UCSB-PD implemented an unwritten policy, practice, or procedure of retaliating against any employee of UCSB-PD who made any report that accused Smith of any form of misconduct. Signa also made reports of misconduct, misappropriation of public funds, sexual discrimination, harassment, and other purportedly illegal behavior or misconduct to Olson and other individuals within the leadership of UCSB-PD. As a result of Signa vocalizing their concerns including in regard to the customs, practices, and policies of the UCSB-PD, Signa was subjected to harassment, discrimination, and retaliation within the UCSB-PD.

On May 31, 2018, Signa made a formal complaint with human resources regarding Signa's concerns and the retaliation, and on June 19, 2018, submitted two internal whistleblower complaints through the University of California, Santa Barbara system. No further action has been taken on those matters.

The Signa FAC asserts two causes of action against defendants Olson and the Regents: (1) violation of the California Whistleblower Protection Act and (2) violation of Labor Code Section 1102.5.

On February 22, 2019, the Regents and Olson filed an answer to the Signa FAC, generally denying its allegations and asserting twenty-seven affirmative defenses.

Also relevant here, on May 17, 2019, Reyes filed in the Reyes Action, a complaint (the Reyes Complaint) against defendants the Regents, Smorodinsky, and Millard, asserting two causes of action: (1) violation of the California Whistleblower Protection Act and (2) violation of Labor Code Section 1102.5.

Briefly, in the operative Reyes Complaint, Reyes alleges that they are employed by the Regents as a police officer, and worked under managers and supervisors who include, among other individuals, Olson, Millard, and Smorodinsky. The complaint further alleges that the Regents retaliated against Reyes based on complaints made by Reyes concerning, among other things, whether a trainee was qualified for release from field training with full arrest authority; Reyes' request to Millard to see Reyes' scores for a sergeant position for which Reyes had applied; Reyes' disagreement with a yearly review of Reyes submitted by Smorodinsky who had only supervised Reyes for three months; a grievance submitted by Reyes regarding a negative performance review; and for opposing retaliation.

On January 22, 2026, the Regents filed a motion for summary judgment, or in the alternative, motion for summary adjudication against the Signa FAC (the Regents Signa Motion), which was calendared for hearing on April 24, 2026.

On February 13, the Regents filed a motion for summary judgment or adjudication against the complaint filed by Reyes in the Reyes Action (the Regents Reyes Motion). That motion was calendared for hearing on May 15, 2026.

On April 11, the court signed, and on April 13 filed, an order pursuant to which the court, among other orders, granted approval of a stipulation by the parties to continue the hearing on the Regents Signa Motion to May 15, 2026. The Regents Reyes Motion remained calendared for hearing on May 15, 2026.

On April 21, Signa filed an opposition to the Regents Signa Motion.

On April 24, Reyes filed an opposition to the Regents Reyes Motion.

On May 11, the Regents filed a motion for an order placing under seal the exhibits lodged by the Regents conditionally under seal as a basis for adjudication of the Regents Signa Motion (the Signa Motion to Seal), and separately filed a motion for an order placing under seal the exhibits lodged by the Regents conditionally under seal as a basis for adjudication of the Regents Reyes Motion (the Reyes Motion to Seal). The Signa Motion to Seal and Reyes Motion to Seal were calendared for hearing on May 29.

On May 15, after a hearing, the court issued a minute order in which the court, among other orders, continued the Regents Signa Motion and the Regents Reyes Motion to June 5, 2026, to allow time to first resolve the Signa Motion to Seal and the Reyes Motion to Seal.

On May 18, Signa and Reyes separately filed their respective oppositions to the Signa Motion to Seal and the Reyes Motion to Seal.

Pursuant to the May 29 Order described above, the court denied the Signa Motion to Seal and the Reyes Motion to Seal, and ordered the Regents to, on or before 5 p.m. on June 3, 2026, file unsealed the amended appendix of evidence filed on February 2, 2026, in support of the Regents Signa Motion (the Signa Amended Appendix), the complete version of which was lodged conditionally under seal by the Regents on February 25, 2026; and the amended appendix of evidence filed on February 13, 2026, in support of the Regents Reyes Motion (the Reyes Amended Appendix), the complete version of which was lodged conditionally under seal by the Regents also on February 25.

On June 3, the Regents filed unsealed the Reyes Amended Appendix, which includes five volumes of exhibits, and the Signa Amended Appendix.

Analysis:

(1) The Regents Signa Motion

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc., § 437c, subd. (a)(1).) "A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. [¶] A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment." (Code Civ. Proc., § 437c, subd. (f)(1)-(2).)

"The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843 (Aguilar).) The party moving for summary judgment "bears the burden of persuasion that there is no genuine issue of material fact and that he is entitled to judgment as a matter of law." (Id. at p. 845.) Relevant here, a defendant meets that burden by showing "that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).)

"In reviewing a defense summary judgment, we apply the traditional three-step analysis ..., that is, we (1) identify the pleaded issues, (2) determine if the defense has negated an element of the plaintiff's case or established a complete defense, and if and only if so, (3) determine if the plaintiff has raised a triable issue of fact." (Meddock v. County of Yolo (2013) 220 Cal.App.4th 170, 175, fn. omitted.)

The Regents Signa Motion seeks an order granting summary judgment in favor of the Regents as against the Signa FAC, and alternatively seeks summary adjudication of 13 issues set forth in the notice of that motion. (Notice at pp. 4-6.) The separate statement filed by the Regents in support of that motion sets forth 71 material facts that relate to "all causes of action" asserted in the Signa FAC, to each issue that is the subject of the Regents Signa Motion, and "that could make a difference in the disposition of the motion." (Sep. Stmt. at pp. 4-19 [material fact nos. 1 through 17 as to "all causes of action"] & pp. pp. 19-24 [incorporating material facts numbered 1 through 71 as to each issue]; Cal. Rules of Court, rule 3.1350(a)(2).)

For all reasons discussed herein, even if the Regents could carry its initial burden of production (Aguilar, supra, 25 Cal.4th at p. 850), the present record reflects the existence of triable issues of material fact which preclude the granting of the Regents Signa Motion for all reasons discussed herein.

As a threshold matter, and for the reasons discussed in the May 29 Order, the court considers only the Signa Amended Appendix. Pursuant to the May 29 Order, the Regents were required to file the Signa Amended Appendix unsealed and without any redactions to any material contained in any exhibit. The court's review of the Signa Amended Appendix that was filed unsealed on June 3, shows that the exhibits to that appendix contain redactions to material or information appearing in the exhibits. (See Signa Amended Appendix at pdf pp. 303-306, 308-312, 314-320, 322-324, 330-331, 334-337, 339-341, 349-360, 362, 363, 365-368, 370-371, 374-386.) For these reasons, the Regents have failed to comply with the May 29 Order. Further, the court does not consider any redacted material or information.

The issues that are the subject of the Regents Signa Motion include that Signa's "alleged protected activities were not a contributing factor to any alleged adverse employment action suffered by [Signa]", and that "Signa cannot establish that the protected activity was a contributing factor to any alleged adverse employment action as it was remote in time or not in proximity." (Notice at pp. 4-5, ¶ 6 & p. 5, ¶ 7.) For these reasons, the Regents Signa Motion argues, the first cause of action for violation of the California Whistleblower Protection Act asserted in the Signa FAC "lacks merit..." (Ibid.; see also Code Civ. Proc., § 437c, subd. (p)(2).)

For the reasons discussed above, the Regents Signa Motion concedes that each of the 71 material facts set forth in the supporting separate statement relate and are material to the issues described above. (Sep. Stmt. at pp. 19 [incorporating "undisputed material facts numbered one (1) through 71." & 22, issues "H", "I" [same].) " '[T]he separate statement effectively concedes the materiality of whatever facts are included. Thus, if a triable issue is raised as to any of the facts in [the Regents'] separate statement, the motion must be denied!' [Citation.]" (Nazir v. United Airlines, Inc. (2009) 178 Cal.App.4th 243, 252 (Nazir), original italics.)

"The California Whistleblower Protection Act [the Act] ... prohibits retaliation against state employees who 'report waste, fraud, abuse of authority, violation of law, or threat to public health' [Citation.] The Act authorizes 'an action for damages' to redress acts of retaliation. [Citation.]" (Miklosy v. Regents of University of California (2008) 44 Cal.4th 876, 882.) Relevant here, section 8547 of the Act provides that "any person who intentionally engages in acts of reprisal, retaliation, threats, coercion, or similar acts against a university employee, including an officer or faculty member, or applicant for employment for having made a protected disclosure shall be liable in an action for damages brought against him or her by the injured party." (Gov. Code, § 8547.10, subd. (c).)

"Government Code section 8547.10, subdivision (e), rather than [McDonnell Douglas Corp. v. Green (1973) 411 U.S. 792], provides the relevant framework for analyzing claims under Government Code section 8547.10." (Scheer v. Regents of the University of California (2022) 76 Cal.App.5th 904, 916 (Scheer).) "In any civil action ... once it has been demonstrated by a preponderance of the evidence that an activity protected by [the Act] was a contributing factor in the alleged retaliation against a former, current, or prospective employee, the burden of proof shall be on the supervisor, manager, or appointing power to demonstrate by clear and convincing evidence that the alleged action would have occurred for legitimate, independent reasons even if the employee had not engaged in protected disclosures or refused an illegal order." (Gov. Code, § 8547.10, subd. (e).)

"Both direct and circumstantial evidence can be used to show an employer's intent to retaliate. 'Direct evidence of retaliation may consist of remarks made by decisionmakers displaying a retaliatory motive. [Citation.]' [Citation.] Circumstantial evidence typically relates to such factors as the plaintiff's job performance, the timing of events, and how the plaintiff was treated in comparison to other workers." (Colarossi v. Coty US Inc. (2002) 97 Cal.App.4th 1142, 1153.)

When evaluating the evidence presented by the parties on summary judgment, " '[w]e accept as true the facts ... in the evidence of the party opposing summary judgment and the reasonable inferences that can be drawn from them.' [Citation.] And we must 'view the evidence in the light most favorable to plaintiff[] ...' and 'liberally construe plaintiff[s] evidentiary submissions and strictly scrutinize defendant's own evidence, in order to resolve any evidentiary doubts or ambiguities in plaintiff[s] favor.' " (Nazir, supra, 178 Cal.App.4th at p. 254.) The court may not weigh the evidence to determine whose version is more likely true. (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 840.)

The information and evidence contained in the parties' respective supporting and responding separate statements shows that on April 16, 2014, Signa was promoted to Lieutenant at UCSB-PD. (Sep. Stmt., Undisputed Material Fact or "UMF" no. 7 & evidence cited therein.)

In April and August 2016, Signa discussed with Olson, Millard, and Assistant Chief Farley, his concerns about a "botched" or "sham" internal affairs investigation that occurred in 2016 concerning the conduct of two former UCSB-PD officers, which Signa contends did not include information that was intentionally omitted by the personnel responsible for overseeing or conducting that investigation and was allowed to be "dropped" when both officers resigned. (Sep. Stmt., UMF nos. 4, 9-10, 12-14 & evidence cited therein [not disputed or reasonably disputed on these points].)

In May 2016, Signa received an abusive phone call from Millard. (Sep. Stmt., UMF no. 53 & evidence cited therein.)

From May 2016 to June 2018, Signa was excluded from lunches with Olson, Millard, and Sergeant Romero where business was discussed and decisions made. (Sep. Stmt., UMF no. 54 & evidence cited therein.)

In August 2016, Signa met with Olson, Farley, Millard, and Sergeant Romero, during which Signa's leadership style was discussed and Sergeant Romero made false accusations that were damaging to Signa. (Sep. Stmt., UMF nos. 16, 55 & evidence cited therein.)

On January 1, 2017, Signa was reassigned from Patrol Lieutenant to Administrative Lieutenant, with Millard being reassigned from Administrative Lieutenant to Patrol Lieutenant. (Sep. Stmt., UMF no. 35 & evidence cited therein.)

On May 25, 2017, Signa reported to Olson a possible misappropriation of funds and violation of Penal Code section 424 when UCSB-PD officers attended a "Shot Show" in Las Vegas, the approval for which was given by a sergeant who Signa believed did not have authority to approve that request. (Sep. Stmt., UMF nos. 17-20 & evidence cited therein [not disputed or reasonably disputed on these points].) During a meeting with Olson on that same day, Signa also expressed his belief that UCSB-PD failed to respond to reports of sexual harassment against female officers. (Sep. Stmt., UMF nos. 21-22 & evidence cited therein [not disputed or reasonably disputed on these points].)

On May 21, 2017, Signa was assigned to a minor position at a major event that was normally assigned to a corporal or sergeant. (Sep. Stmt., UMF no. 57 & evidence cited therein.)

On May 30, 2017, Signa reported to Farley the same information in regard to the possible misappropriation of funds by officers who attended the "Shot Show" in Las Vegas that Signa had previously reported to Olson. (Sep. Stmt., UMF no. 24 & evidence cited therein.)

On June 19 and December 13, 2017, Signa advised Farley of Signa's belief that a 2017 internal affairs investigation into Smith was improper and not impartial, and that officers believed Smith was protected by those in leadership positions at UCSB-PD. (Sep. Stmt., UMF nos. 27, 29-30 & evidence cited therein [not disputed or reasonably disputed on these points].) Also on December 13, 2017, Signa repeated the same information to Olson and Millard, including the negative impacts of Smith's continued presence at UCSB-PD and Smith's dishonesty regarding his relationship with another officer. (Sep. Stmt., UMF no. 31-32 & evidence cited therein.)

Also on June 19, 2017, Signa was excluded from an investigation involving an officer supervised by Signa even though Signa had knowledge and involvement with the issues. (Sep. Stmt., UMF no. 58 & evidence cited therein.)

On June 20, 2017, Signa was excluded by Millard from a team meeting Signa was involved with, and chastised by Farley for notifying patrol of Signa's on-call status. (Sep. Smt., UMF no. 59 & evidence cited therein.)

During a meeting with Farley on July 29, 2017, a process of interfering and attempting to prevent Signa's involvement with public relationship programs Signa had created and had been working on for several years began. (Sep. Stmt., UMF no. 60 & evidence cited therein.)

On August 18, 2017, Millard and Olson approached Signa's staff without Signa's knowledge, intentionally excluding Signa. (Sep. Stmt., UMF no. 61 & evidence cited therein.)

On December 13, 2017, while attempting to advise of employee complaints, fears and issues, Signa was verbally abused by Olson, Millard, and Farley. (Sep. Stmt., UMF no. 62 & evidence cited therein.)

On June 19, 2018, Signa called the Ethics Point Hotline to report the purported retaliation by Olson, Farley, and Millard. (Sep. Stmt., UMF no. 41 & evidence cited therein.)

In November 2018, Signa was excluded from a large raise given to lieutenants. (Sep. Stmt., UMF no. 68.) The USCB-PD business officer informed Signa that the decision to exclude him from the November 2018 salary increase was "intentional". (Ibid.; see also Regents Amended Appendix of Evidence, exhibit 7 at p. 19, ll. 1-2; Resp. Sep. Stmt., Additional Material Fact no. 5 & evidence cited therein.)

On March 1, 2019, Signa retired from the UCSB-PD. (Sep. Stmt., UMF no. 2 & evidence cited therein.)

Considering the timing of the events described above in relation to, among other things, the timing of the concerns and reports raised or expressed by Signa, the available evidence and information gives rise to competing or conflicting inference as to whether the Regents acted with an intent to retaliate against Signa. For example, a reasonable trier of fact could conclude, based on the timing of relevant events and notwithstanding whether the Regents can show the existence of a legitimate reason for any of its actions, that the reasons stated by the Regents were pretextual, and that the evidence is sufficient to show the existence of a retaliatory motive. (See Scheer, supra, 76 Cal.App.5th at pp. 917–918.)

The Signa Motion to Seal also argues that the first cause of action asserted in the Signa FAC lacks merit because "Signa's reports to Defendant of alleged violations did not disclose 'improper government activity' since Signa failed to identify, let alone establish, that any state or federal laws or regulations were violated by these reported incidents nor has Signa shown any conduct that violated any Executive order of the Governor, a California Rule of Court, or any policy or procedure mandated by the State Administrative Manual or State Contracting Manual, or was economically wasteful, involves gross misconduct, incompetency, or inefficiency[]"; that "Signa's reports to Defendant of alleged violations did not disclose 'improper government activity' since they merely disclosed possible violations of internal policies, which in one instance did not exist, and which are not protected even if the policies are of a government entity[]"; that "Signa's reports to Defendant of alleged violations did not involve a 'protected disclosure' were not a 'good faith communication' did not involve disclosures of an 'improper governmental activity' and were not intended for the purposes of remedying any condition that threatened the health or safety of employees or the public as the activities did not threaten such things[]"; and that "Signa had no reasonable belief that illegal conduct was occurring, as Signa did not witness most of the alleged conduct and could not reasonably believe those facts constituted illegal conduct." (Notice at p. 4, ¶¶ 1-4.)

For the same reasons discussed above, the Regents concedes that each of the facts set forth in its supporting separate statement relate and are material to the issues described above. (Sep. Stmt. at p. 20, issues "C", "D" [incorporating undisputed material facts number 1 through 71] & p. 21, issues "E" and "F" [same].)

Pursuant to Government Code section 8547.2, a "protected disclosure" is "a good faith communication, including a communication based on, or when carrying out, job duties, that discloses or demonstrates an intention to disclose information that may evidence either of the following circumstances:

"(A) An improper governmental activity.

"(B) A condition that may significantly threaten the health or safety of employees or the public if the disclosure or intention to disclose was made for the purpose of remedying that condition." (Gov. Code, § 8547.2, subd. (e)(1)(A), (B).)

Under Government Code section 8547.2, "[i]mproper governmental activity' means an activity by a state agency or by an employee that is undertaken in the performance of the employee's duties, undertaken inside a state office, or, if undertaken outside a state office by the employee, directly relates to state government, whether or not that activity is within the scope of

their employment, and that meets any of the following criteria:

“(A) The activity is in violation of any state or federal law or regulation, including, but not limited to, corruption, malfeasance, bribery, theft of government property, fraudulent claims, fraud, coercion, conversion, malicious prosecution, misuse of government property, misuse of state expenditures, including allocations, loans, or grants, or willful omission to perform duty.

“(B) The activity is in violation of an executive order of the Governor, a California Rule of Court, or any policy or procedure mandated by the State Administrative Manual or State Contracting Manual.

“(C) The activity is economically wasteful, involves gross misconduct, incompetency, or inefficiency.” (Gov. Code, § 8547.2, subd. (c)(1)(A)-(C).)

“Complaints made ‘in the context of internal administrative or personnel actions, rather than in the context of legal violations’ do not constitute protected whistleblowing. [Citations.] ‘To exalt these exclusively internal personnel disclosures with whistleblower status would create all sorts of mischief. Most damagingly, it would thrust the judiciary into micromanaging employment practices and create a legion of undeserving protected “whistleblowers” arising from the routine workings and communications of the job site.’ [Citation.]” (Levi v. Regents of University of California (2017) 15 Cal.App.5th 892, 904.)

The Regents does not appear to dispute that the alleged protected disclosures at issue, as those issues are set forth in the separate statement, include Signa’s concerns about or reports of a purported misappropriation of funds in violation of Penal Code section 424, and a purported failure by UCSB-PD to respond to reports of sexual harassment against female officers. (Sep. Stmt., UMF nos. 17-20, 21-22, & 24; see also Memorandum at pp. 12-13.)

A reasonable trier of fact could conclude from the nature or subject of the concerns raised or disclosed by Signa, that those disclosures relate to or implicate a misuse or waste of state expenditures, violations of law, or a threat to the safety of other employees. The Regents Signa Motion also does not explain why a reasonable trier of fact could not infer, from the information and evidence presented here, that Signa’s disclosures were made for the purpose of remedying the purported conditions described above. Instead, a reasonable trier of fact could find, based on the material facts and evidence presented here, that the disclosures at issue implicate or concern improper activity under the Act, and that Signa’s communications regarding those concerns were made in good faith.

For these and all further reasons discussed above, there exist triable issues of fact, including competing inferences reasonably deducible from the evidence presented here, which the Regents Signa Motion concedes are material to each of the issues that are the subject of that motion. “[S]ummary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.” (Code Civ. Proc., § 437c, subd. (c).) Therefore, the court will deny the Regents Signa Motion. (Code Civ. Proc., § 437c, subds. (c), (f)(1); Aguilar, supra, 25 Cal.4th at p. 845; Gov. Code, § 8547.10, subd. (e).)

The Regents’ request for judicial notice:

The court will grant the request of the Regents for judicial notice of the Signa FAC. (Regents RJN at p. 3, ¶ 1; Evid. Code, § 452, subd. (d)(1).)

Evidentiary objections:

The Regents submit written objections to material contained in the declaration of Signa submitted in support of Signa’s opposition to the Regents Signa Motion. “In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion.” (Code Civ. Proc., § 437c, subd. (q).)

California Rules of Court provide: "Each written objection must be numbered consecutively and must:

"(1) Identify the name of the document in which the specific material objected to is located;

"(2) State the exhibit, title, page, and line number of the material objected to;

"(3) Quote or set forth the objectionable statement or material; and

"(4) State the grounds for each objection to that statement or material." (Cal. Rules of Court, rule 3.1354(b)(1)-(4).)

"Written objections to evidence must follow one of the ... two formats" set forth in California Rules of Court, rule 3.1354. (Cal. Rules of Court, rule 3.1354(b).)

Though the written objections of the Regents identify the document where the material objected to is located and quote the objectionable material, those written objections fail to follow the format set forth in California Rules of Court, rule 3.1354. For example, instead of stating the page and line number of the material objected to, the Regents raise the same multiple objections to the same multiple statements contained in each paragraph of the Signa declaration cited in the written objections. The manner in which the written objections of the Regents is formatted effectively forces the court to guess whether the Regents contends that all or only some statements within each cited paragraph are objectionable, and why.

As the written objections submitted by the Regents do not, for all reasons discussed above, comply with the formatting rules set forth in California Rules of Court, rule 3.1354, the court disregards those objections. (*Hodjat v. State Farm Mutual Automobile Ins. Co.* (2012) 211 Cal.App.4th 1, 8 (*Hodjat*) [a trial court may decline ruling on improperly formatted objections].)

(2) The Regents Reyes Motion

The Regents Reyes Motion seeks summary adjudication or, in the alternative, summary adjudication of 12 issues which are stated in the notice of that motion. (Notice at pp. 4-12.) The separate statement submitted in support of that motion sets forth 93 facts which, for the same reasons discussed above, relate and are material to each of the issues stated in the Regents Reyes Motion. (Sep. Stmt. at pp. 20-25 [incorporating each material fact numbered 1 through 93].)

For the same reasons discussed above and in the May 29 Order, the court considers only the Reyes Amended Appendix. The courts review of the Reyes Amended Appendix also shows that appendix includes redactions to information or material appearing in the attached exhibits, in violation of the May 29 Order as further discussed above. (Reyes Amended Appendix, Volume 3 at pdf pp. 16-44, 47-48, 51-55; Volume 4 at pdf pp. 7, 9, 11-22, 24, 27, 29, 31, 33-56; Volume 5 at pdf pp. 7-17, 23-25, 28, 31, 39-109.) In addition, and for the reasons discussed above, the court does not consider any redacted material.

The same reasoning and analysis set forth above applies here. For example, the issues which are the subject of the Regents Reyes Motion include that the reports made by Reyes concerning the alleged violations at issue did not disclose "improper government activity" for the same or similar reasons as those asserted in the Regents Signa Motion; that those reports do not involve any protected disclosure and were not a good faith communication for the same or similar reasons discussed above; and that Reyes could not have had a reasonable belief that illegal conduct was occurring. (Notice at pp. 4-5, ¶¶ 1-3.)

The Regents Reyes Motion concedes that the facts material to the issues described above include that from June 15 to June 23, 2017, Reyes, as a "Field Training Officer" or "FTO", assigned a trainee; that during that time, Reyes prepared Daily

Observation Reports or "DOR" related to the trainee which rates that trainee's performance; that in the DOR, Reyes noted, among other things, concerns about the trainee's failure to control the movement of a suspect and that the trainee struggled with handcuffing an individual during an arrest; that Reyes did not recommend the trainee be allowed to move to the next phase known as the "Ghost Phase"; that on June 27, 2017, UCSB-PD issued a memorandum that the trainee had completed field training; that on June 29, 2017, Reyes sent correspondence to the Commission on Peace Officer Standards and Training or "POST" documenting Reyes' concerns related to the release of a trainee and the trainee's performance; and that Reyes claims the Regents violated Penal Code section 832 because "it was 'an unsafe work practice to release of an unqualified officer with full arrest authority was (sic) a threat to the safety of the public and the University.'" (Sep. Stmt., Undisputed Material Fact or "UMF" nos. 13, 24-28, 30, 32, 34, 36, 37, 51 & evidence cited therein [not disputed or reasonably disputed on these points].)

For the same or similar reasons further discussed above, and considering the provisions of Penal Code section 832, there exist triable issues of fact, including competing inferences reasonably deducible from the evidence presented, in regard to whether the concerns or reports of Reyes constitute a protected disclosure under Government Code section 8547.2, subdivision (e)(1)(B), and whether the communications of Reyes described above were made in good faith for the purpose of remedying those concerns.

In addition, though the material facts which relate to the issues and causes of action that are the subject of the Regents Reyes Motion include that at the time Reyes wrote to POST, "he never informed Olson, Farley, Millard, or the FTO Supervisor, Sergeant Pierce, of his alleged concerns about the trainee[]", the available evidence and information, including that presented by Reyes, gives rise to an inference that Millard was aware of the concerns raised by Reyes, and that Millard, Olson, and Sergeant Pierce were aware or knew of those concerns whether they were communicated by Reyes directly or in a different manner. (See Sep. Stmt., UMF nos. 3 & 43-44; Resp. Sep. Stmt., Additional Material Fact nos. 1-2 & evidence cited therein [dec. of counsel Jaime Keeton, exhibit A at pdf p. 16; Reyes dec., ¶ 6].)

For all reasons discussed above, there exist triable issues of fact, including competing inferences reasonably deducible from the evidence presented by the parties, that preclude the granting of the Regents Reyes Motion as to each issue that is the subject of that motion. Therefore, the court will deny that motion including as to the request for summary judgment.

The Regents' request for judicial notice:

The court will grant the request of the Regents for judicial notice of the complaint filed by Reyes in the Reyes Action. (Regents RJN at p. 4, ¶ 1; Evid. Code, § 452, subd. (d)(1).)

Evidentiary objections:

The Regents has filed with the court, written objections to material contained in the declaration of Reyes submitted in support of their opposition to the Regents Reyes Motion. "In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion." (Code Civ. Proc., § 437c, subd. (q).)

The written objections of the Regents to material contained in the Reyes declaration are formatted in the same manner as the written objections to the Signa declaration further discussed above. For example, instead of stating the page and line number of the material objected to, the Regents raise the same multiple objections to the same multiple statements contained in each cited paragraph of the Reyes declaration, which effectively forces the court to determine whether all or only some statements within each cited paragraph are objectionable, and why.

The same reasoning and analysis apply to the written objections submitted by the Regents in support of their reply to Reyes' opposition to the Regents Reyes Motion. For the same reasons discussed above, those written objections fail to follow the format set forth in California Rules of Court, rule 3.1354(b).

Notwithstanding that the written objections submitted by the Regents fail to comply with court rules, the court will overrule objection no. 4. As to the remaining objections, the court, for the same reasons discussed above, disregards those objections. (Hodjat, supra, 211 Cal.App.4th at p. 8.)

Judges

Judge Donna D. Geck

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